

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUBC048004: HARVEST AT LIMONEIRA MASTER CORPORATION vs JUAN
GERADO OSEGUERA**

07/01/2026 in Department 40

Motion for Special Appearance to Quash Service and Set Aside Default,

Harvest at Limoneria Master Corp. v. Oseguera

2025CUBC048004

July 1, 2026

Judge Borrell, Dept.40

Motion: Special Appearance Motion for Order to Quash Service and Vacating and Setting Aside Default and Default Judgment and Granting Defendant Leave to Defend
(Unopposed)

Tentative: Grant.

Specially appearing defendant Juan Gerardo Oseguera's unopposed motion to quash service of summons and complaint and setting aside the default is GRANTED. The Court finds that service on defendant has not been established and that the Court, therefore, lacks personal jurisdiction over him. The Court further finds that service of the summons did not result in actual notice to defendant.

The default entered against defendant Juan Gerardo Oseguera is hereby set aside.

Moving party to give notice.

February 17, 2026: Proof of Service of Summons filed by Plaintiff alleging substitute service on Defendant on January 19, 2026, at 1994 Meyer Ct., Santa Paula, CA 93060 to "John Doe" and mail.

March 6, 2026: Default of defendant Juan Gerardo Oseguera entered.

June 15, 2026: Special Appearance Motion for Order to Quash Service and Vacating and Setting Aside Default and Default Judgment and Granting Defendant Leave to Defend filed by Defendant.

Notice: Ok. By electronic service on June 3, 2026.

Grounds:

Defendant Juan Gerardo Oseguera moves, under Code of Civil Procedure section 473.5 to Quash Service and set aside the default entered against Defendant on March 6, 2026 through Code of Civil Procedure section 418.10, subdivision (a), allowing that because there was no service of process on Defendant that the court never gained jurisdiction on him and the time he had to plead

2025CUBC048004: HARVEST AT LIMONEIRA MASTER CORPORATION vs JUAN GERADO OSEGUERA

never started. Defendant argues that the service of summons was defective substitute service and did not result in actual notice to Defendant in time to respond.

Defendant asserts that he was never personally served, never received a copy of the Summons and Complaint in the mail at either his home address or address of the condominium in Santa Paula and learned about the lawsuit from a stranger.

No Service: Defendant asserts that he has never been properly served and the Court has no jurisdiction over him, that he registered his home address in Oxnard with the HOA and management company when he purchased the condo and that Plaintiff was well informed of Defendant's residence and home address. Defendant asserts that there was no personal service and no substitute service on Defendant-- no due diligence exercised, service at condo which Plaintiff knew was occupied by a tenant, service to adolescent Hispanic child of no relation to Defendant). Defendant argues that the service of summons has not resulted in actual notice to Defendant in time to defend the action and that Defendant's failure to answer the Complaint and avoid the default is not due to Defendant and cites to Code of Civil Procedure section 473.5.

Defendant requests that the Court grant this Special Appearance Motion for Order to Quash Service and Set Aside Default and Default Judgment and for attorney fees and expenses.

Attachment: Proposed Answer

Declaration of Juan Oseguera: Defendant. States lives at 711 Gitano Court, Oxnard CA 93030, and has never resided at the Santa Paula house but rents it to a tenant and his family, states that the HOA has known that he lives in Oxnard and that it is his mailing address and that he has a tenant occupying the Santa Paula Condo. Reviews allegations in Complaint about trash, parking, and conduct problems. States never received summons and complaint and that around April 1 his tenant told him that he found something that looked legal.

Declaration of Flavio Huerta: Tenant at 1994 Meyer Court, Santa Paula, CA. States his landlord is Defendant, that he has lived at the condo since July 1, 2023 and that Defendant lives in Oxnard. Discusses complaints from HOA. States that neither him nor anyone in his family were given legal papers or received legal papers in the mail at the condo, states around April found papers with Defendant's name on them and gave them to him.

Declaration of F Stephen Jones: Attorney for Defendant. States on April 2, 2026, he received a worried phone call from Defendant about legal papers, was able to determine it was Summons and Complaint in this case, contacted opposing counsel- settlement agreement worked up, then no response from opposing counsel.

Exhibit 1: HOA bill showing correct address

Exhibit 2: Business cards of inspectors who found no violations at condo

Opposition: None

Reply: N/A

2025CUBC048004: HARVEST AT LIMONEIRA MASTER CORPORATION vs JUAN GERADO OSEGUERA

Discussion:

A. Overview

Special appearing defendant Juan Gerado Oseguera (“Defendant”) moves to set aside the default entered in this action on March 6, 2026, pursuant to Code of Civil Procedure section 473.5 and also to quash service under Code of Civil Procedure section 418.10, subdivision (a). The motion is unopposed.

Procedurally, the motion is a bit unique as Defendant attaches a proposed Answer, which seems to suggest he is requesting to file the Answer not just have the summons quashed. However, Court could set aside the default (under either CCP section 473.5 for no actual notice or section 473(b) for mistake/surprise/excusable neglect) and order the Answer filed, the recommendation is to quash the summons as Plaintiff has not established effective service. (See *Floveyor Internat., Ltd. v. Superior Ct.* (1997) 59 Cal. App. 4th 789, 792, finding that Plaintiff’s “motion to vacate the default judgment pursuant to Code of Civil Procedure section 473 did not constitute a general appearance invalidating its motion to quash. (Code Civ. Proc., § 418.10, subd. (d).)”))

Here, Defendant has established through his declaration, and that of his tenant, that the address listed on the proof of service where the summons and complaint was served is not Defendant’s office or “dwelling house, usual place of abode, usual place of business, or usual mailing address.” (Code Civ. Proc., § 415.20, subd. (a)-(b).) The summons and complaint were served at a condominium owned by Defendant but rented to a tenant. As such, the Court finds that the substitute service was improper.

Defendant’s declaration further establishes that he did not find out about the lawsuit until around April 1 when his tenant gave him the paperwork they said they found. As the default was entered on March 6, 2026, the Court finds that service of the summons did not result in actual notice in time for Defendant to defend the action and the default is set aside pursuant to Code of Civil Procedure section 473.5.

In *Ellard v. Conway* (2001) 94 Cal.App.4th 540, the process server had attempted to serve defendants at their last known address but a guard at the address advised the server that defendants had moved. Plaintiff obtained a USPS forwarding address to a postal annex. The process server then served the manager of the facility and mailed copies of the documents to defendants at the facility. In affirming that there was proper substitute service, the court stated that “[s]tatutes governing substitute service shall be ‘liberally construed to effectuate service and uphold jurisdiction if actual notice has been received by the defendant.... [Citation.]’ [Citation].” (*Id.* at p. 544, citing *Bein v. Brechtel–Jochim Group, Inc.*, *supra*, 6 Cal.App.4th 1387, 1392.)